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|   |                                                                                     | <p>Pursuant to its mandatory duty, and the parties having failed to show good cause after notice had been given by the court, the court dismissed the case on 4/15/2026, whereupon the court lost jurisdiction to hear any motion for attorney fees.</p> <p>The court considers the filing of the Notice under penalty of perjury representing the entire case has been settled a misrepresentation to the court if, indeed, additional law and motion over settlement terms is contemplated, as it was here. Settlement of the "entire case" means just that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See <i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 535 ["A settlement with open material terms is not a 'conditional settlement.' To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms."].)</p> <p>Further, plaintiff "must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6." (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, "Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court's own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6" (<i>Id.</i>)</p> <p>Because the court has lost jurisdiction and the issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the 998 offer, and/or whether some other procedure was viable. The court rules only that the chosen course of action was not.</p> <p>Clerk to give notice.</p> |
| 8 | <b>Johnson vs. Smith</b><br><b>30-2025-</b><br><b>01499232-CU-</b><br><b>PA-CJC</b> | <b>Motion to Strike Portions of Complaint</b> <p>The motion to strike portions of Plaintiff's complaint filed by defendants Raymond Clark Smith IV and Blake Smith is DENIED.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |

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|   |                                                                                                      | <p>Defendants move to strike from the complaint allegations they contend are conclusory (see Compl., ¶¶ 5, 19, 25, 40) and irrelevant (id., ¶¶2-4, 16-19, 24-25, 32, 34), as well as punitive damages allegations (id., ¶¶ 21-27, 36, 37, 43) and the prayer for punitive damages (id., prayer ¶ d).</p> <p>All the purported conclusory and irrelevant allegations are matters for a jury to determine when deciding negligence. The court will not strike them from the complaint. The complaint also sufficiently alleges facts as to each defendant to support a prayer for punitive damages on grounds defendants demonstrated a conscious disregard of the safety of others (as to Raymond) and knowingly entrusted a street-legal golf cart to Raymond despite knowing he lacked a valid driver's license and the golf cart lacked safety features (as to Blake).</p> <p>Defendants are ORDERED to file an answer within 5 days.</p> <p>Trial is scheduled for 2/18/2028 at 11:30 AM. Jury fees must be paid within 5 days.</p> <p>CMC scheduled for 9/3/2026 is VACATED.</p> <p>Clerk to give notice.</p>                                                                                                     |
| 9 | <p><b>Singleton vs. Santa Ana Unified School District</b><br/> <b>30-2026-01544048-CU-WM-CJC</b></p> | <p><b>Demurrer to Petition for Writ of Mandate</b></p> <p>Defendant Santa Ana Unified School District's unopposed demurrer to the petition for writ of mandate and complaint for declaratory and injunctive relief is OVERRULED, in part, and SUSTAINED in part, without leave to amend.</p> <p><u>Second Cause of Action: Declaratory Relief</u></p> <p>Defendant argues the second cause of action for declaratory relief fails as a matter of law pursuant to the California Supreme Court's decision in <i>City of Gilroy v. Superior Court</i> (2026) 19 Cal.5th 38 (<i>Gilroy</i>). Defendant is incorrect.</p> <p><i>Gilroy</i> addressed whether the California Public Records Act ("CPRA") authorizes the trial court to grant declaratory relief for violations of the CPRA where it was undisputed an agency had disclosed all existing records that were responsive to a records request and not exempt from disclosure. (<i>Gilroy, supra</i>, 19 Cal.5th at. p. 45.) In <i>Gilroy</i>, the Supreme Court "conclude[d] from the statutory text, considered in light of the CPRA's purpose of increasing freedom of information, that declaratory relief under the CPRA is available in at least some</p> |